

Heywood and Middleton Water Act, 1956

4 & 5 ELIZ. 2 Ch. lxxxix

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short and collective titles.
2. Division of Act into Parts.
3. Incorporation of Acts.
4. Interpretation.

PART II

WORKS

5. Power to construct works.
6. Power to stop up roads and footpaths.
7. Power to divert footpaths.
8. Stopping up footpaths in case of diversion.
9. Period for completion of works.
10. Works to form part of undertaking.
11. Power to take waters.
12. Provisions as to compensation water.
13. Power to divert streams etc.
14. Application of section 145 of Act of 1933.
15. Sheep dipping and washing.

PART III

LANDS

16. Power to acquire lands.
17. Correction of errors in deposited plans and book of reference.
18. Acquisition of part only of certain properties.
19. Power to expedite entry.
20. Power to enter for survey or valuation.
21. Disregard of recent improvements and interests.
22. Extinction of private rights of way.
23. Power to acquire easements only.
24. Agreements with adjoining owners.

PART IV

SUPPLY OF WATER

Section

25. As to supplies from trunk mains.
26. Power to recover charge for turning off and turning on in certain cases.
27. Cutting off communication pipes to prevent waste of water.
28. Remission of water rates on grounds of poverty.
29. Information to be supplied by owners of premises in certain cases.

PART V

FINANCIAL PROVISIONS

30. Power to borrow.
31. Application of Part IX of Act of 1933.
32. As to securities of Board.
33. Apportionment of deficiency in revenue of Board.
34. Application of moneys received by Board.
35. Interest on reserve funds.
36. Saving for powers of Treasury.
37. Payment of interest on moneys borrowed until completion of works.
38. Expenses in connection with ceremonies etc.

PART VI

MISCELLANEOUS

39. Members of Board to cease to hold office in certain events.
40. As to recovery summarily of sums due for fittings etc.
41. Application of certain sections of Public Health Act 1875 and Act of 1933 to Board.
42. Repeal.
43. Application of Arbitration Act.
44. For protection of Rochdale Corporation.
45. For protection of Mersey River Board.
46. For protection of gas and electricity undertakers.
47. For protection of Midland Leather Company Limited and Kelsall and Kemp Limited.
48. For protection of James R. Crompton and Brothers Limited.
49. For protection of R. Cudworth (Norden) Limited.
50. Saving for town and country planning.
51. Costs of Act.



CHAPTER lxxxix

An Act to authorise the Heywood and Middleton Water Board to construct additional waterworks and to acquire lands to confer further powers upon the Board and for other purposes. [2nd August 1956.]

WHEREAS—

(1) By the Heywood and Middleton Water Acts and Orders 1898 to 1954 the Heywood and Middleton Water Board (in this Act referred to as “the Board”) are authorised to construct certain waterworks and to supply water within an area in the county palatine of Lancaster including the boroughs of Heywood and Middleton:

(2) With a view to ensuring that the Board shall be and continue to be in a position to meet the demands made upon them for the supply of water it is expedient that the Board should be empowered to construct the new works described in this Act and to abstract water by means thereof and to acquire lands for the purpose thereof:

(3) By section 14 (Provisions as to permanent reduction of compensation water) of the Heywood Waterworks Act 1877 as applied to the Board by section 39 (Repeal of Acts with certain savings) of the Heywood and Middleton Water Board Act 1901 the Board are required to discharge over or through the gauge mentioned in section xlix (Company to maintain a constant supply of water to mill owners) of the Heywood Waterworks Amendment Act 1855 in each and every second during the whole of the twelve ordinary and legal working hours mentioned in the said section xlix of every day throughout the year (except as in the said section 14 mentioned) a quantity of water not less than four and a quarter cubic feet:

(4) By section 18 (Compensation water) of the Heywood and Middleton Water Board Act 1901 the Board are required to discharge or cause to be discharged from the Ashworth Moor Enlarged Reservoir or otherwise cause or permit to flow over or through the gauge mentioned in that section into the Cheesden Brook not less than five hundred and thirty thousand gallons of water during ten consecutive hours of every day throughout the year (except as in the said section provided) commencing at six in the morning of each such day in a regular and continuous flow:

(5) The demand for water within the limits of supply of the Board has increased is increasing and is likely further to increase:

(6) It is expedient that pending the construction of the new works described in this Act the quantity of compensation water which the Board are required to discharge as aforesaid should be reduced and that notwithstanding the construction of the said works the quantity of compensation water which the Board are required to discharge should not be increased except as provided in this Act and that the obligations of the Board in regard to the discharge of compensation water should be varied as mentioned in this Act:

(7) Estimates have been prepared for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For the purchase of lands under the powers of this Act	16,840
For the construction of the works authorised by this Act	1,248,160
	£1,265,000

(8) The works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

(9) It is expedient to empower the Board to borrow moneys for the said purposes:

(10) It is expedient that the other powers contained in this Act should be conferred and that the other provisions of this Act should be enacted:

(11) The objects of this Act cannot be attained without the authority of Parliament:

(12) Plans and sections showing the lines situations and levels of the works authorised by this Act and a book of reference to such plans containing the names of the owners and lessees

or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act have been duly deposited with the clerk of the county council of the county palatine of Lancaster and with the town clerk of the county borough of Rochdale which plans sections and book of reference are in this Act respectively referred to as the deposited plans the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

1.—(1) This Act may be cited as the Heywood and Middleton Short and Water Act 1956. collective titles.

(2) The Heywood and Middleton Water Acts and Orders 1898 to 1954 and this Act may be cited together as the Heywood and Middleton Water Acts and Orders 1898 to 1956.

2. This Act is divided into Parts as follows:—

Division of Act into Parts.

Part I.—Preliminary.

Part II.—Works.

Part III.—Lands.

Part IV.—Supply of water.

Part V.—Financial provisions.

Part VI.—Miscellaneous.

3. The following enactments (so far as the same are applicable Incorporation for the purposes of and are not inconsistent with the provisions of Acts. of this Act) are hereby incorporated with this Act:—

(a) The Lands Clauses Acts with the following exceptions and modifications:—

(i) section 92 and sections 127 to 133 of the Lands Clauses Consolidation Act 1845 and section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860 are not incorporated with this Act ;

(ii) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section :

(iii) the expression "the promoters of the undertaking" shall be construed to mean the Board;

PART I
—cont.

- (b) Section 16 of the Railways Clauses Consolidation Act 1845 and the provisions of that Act with respect to the temporary occupation of lands near the railway during the construction thereof:

Provided that—

(i) for the purposes of the said provisions the expression “the railway” shall be construed to mean the works authorised by this Act the expression “the centre of the railway” shall be construed to mean the centre line of the dam of the Green Booth Reservoir (Work No. 1) authorised by this Act and the expression “the company” shall be construed to mean the Board;

(ii) any electrical works or apparatus erected or constructed under the said section 16 (as incorporated by this section) shall be so erected or constructed and so maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line;

- (c) The following provisions of the Third Schedule to the Water Act 1945:—

Part I (Interpretation) so far as it relates to the following provisions of the said Third Schedule;

Part II (Works and Lands) except sections 3 7 8 and 9;

Part IV (Minerals underlying Waterworks);

Part V (Power to Lay Mains &c.);

Part VI (Breaking Open Streets &c.);

Part XIII (Provisions for Preventing Waste &c. of Water and as to Meters and Other Fittings);

In Part XVI (General and Miscellaneous) sections 92 and 94:

Provided that the incorporated provisions of the Third Schedule to the Water Act 1945 shall be read and have effect as if—

(i) in section 2 of the said schedule for the words “the plans submitted to the Minister” there were substituted the words “the deposited plans” and for the words “the said plans” there were substituted the words “the deposited sections”;

(ii) in section 4 of the said schedule the words from the beginning of the section to the words “abstract water” shall be omitted;

(iii) in section 12 of the said schedule for the words “after this section is incorporated with their enactments” there were substituted the words “under the special Act” for the words “all existing pipes or other conduits for the collection passage or distribution of water and underground works belonging to them” there were substituted the words “all such pipes or other conduits or underground works” and as if the words “for time being belonging to them” were omitted;

(iv) section 64 of the said schedule were modified as set out in the schedule to the Local Government (Miscellaneous Provisions) Act 1953;

and for the purposes of the said incorporated provisions the expression “the undertakers” shall be construed to mean “the Board”.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Third Schedule to the Water Act 1945 have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“Act of 1855” and “Act of 1877” mean respectively the Heywood Waterworks Amendment Act 1855 and the Heywood Waterworks Act 1877 as applied to the Board by section 39 (Repeal of Acts with certain savings) of the Act of 1901;

“Act of 1933” means the Local Government Act 1933;

“Board” means the Heywood and Middleton Water Board;

“boroughs” means the borough of Heywood and the borough of Middleton;

“corporations” means the Heywood Corporation and the Middleton Corporation;

“county” and “county council” mean respectively the administrative county of the county palatine of Lancaster and the county council of that county;

“county borough” means the county borough of Rochdale;

“Heywood Corporation” and “Middleton Corporation” mean the mayor aldermen and burgesses of the boroughs respectively;

PART I
—cont.

“Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Town and Country Planning Act 1947 by the Lands Tribunal Act 1949 by the Town and Country Planning Act 1954 and by this Act;

“Minister” means the Minister of Housing and Local Government;

“Rochdale Corporation” means the mayor aldermen and burgesses of the county borough;

“tribunal” means the Lands Tribunal;

“undertaking” means the undertaking of the Board as from time to time authorised;

and any Act or Order included in the Heywood and Middleton Water Acts and Orders 1898 to 1956 is referred to in this Act as the Act or Order of the year in which it was passed or confirmed by Parliament.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

WORKS

Power to
construct
works.

5. Subject to the provisions of this Act the Board may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and upon the lands delineated on those plans and described in the deposited book of reference the following works in the county and the county borough:—

Work No. 1 An impounding reservoir (to be called “the Green Booth Reservoir”) in the county borough and the borough of Heywood to be formed by means of an embankment or dam across the Naden Brook and the Royds Brook commencing in the enclosure numbered 550 in the county borough on the 1/2500 ordnance map of Lancashire sheet LXXX.15 (edition of 1929) and terminating in the enclosure numbered 571 in the county borough on the same sheet;

Work No. 2 An aqueduct catchwater or drain (to be called aqueduct No. 1) commencing in intake No. 1 (Work No. 3) in the Cheesden Brook in the urban district of Ramsbottom and terminating at the embankment of the Green Booth Reservoir in the county borough;

Work No. 3 An intake (to be called intake No. 1) wholly situate in the urban district of Ramsbottom in the Cheesden Brook in the enclosure numbered 220 on the 1/2500 ordnance map of Lancashire sheet LXXX.14 (edition of 1929);

Work No. 4 An aqueduct catchwater or drain (to be called aqueduct No. 2) wholly situate in the county borough commencing in intake No. 2 (Work No. 5) in the Mill Croft Brook and terminating by a junction with aqueduct No. 1 (Work No. 2);

Work No. 5 An intake (to be called intake No. 2) wholly situate in the county borough in the Mill Croft Brook in the enclosure numbered 386 on the 1/2500 ordnance map of Lancashire sheet LXXX.15 (edition of 1929);

Work No. 6 An aqueduct catchwater or drain (to be called aqueduct No. 3) wholly situate in the county borough commencing in intake No. 3 (Work No. 7) in the stream in the enclosure numbered 294 on the 1/2500 ordnance map of Lancashire sheet LXXX.14 (edition of 1929) and terminating by a junction with aqueduct No. 1 (Work No. 2);

Work No. 7 An intake (to be called intake No. 3) wholly situate in the county borough in the stream in the enclosure numbered 294 on the 1/2500 ordnance map of Lancashire sheet LXXX.14 (edition of 1929);

Work No. 8 An aqueduct catchwater or drain (to be called aqueduct No. 4) wholly situate in the county borough commencing in intake No. 4 (Work No. 9) in the Old House Brook and terminating by a junction with aqueduct No. 3 (Work No. 6);

Work No. 9 An intake (to be called intake No. 4) wholly situate in the county borough in the stream in the enclosure numbered 295 on the 1/2500 ordnance map of Lancashire sheet LXXX.14 (edition of 1929);

Work No. 10 An aqueduct catchwater or drain (to be called aqueduct No. 5) wholly situate in the borough of Heywood commencing in intake No. 5 (Work No. 11) in the stream in the enclosure numbered 1281 on the 1/2500 ordnance map of Lancashire sheet LXXXVIII.2 (edition of 1939) and terminating by a junction with aqueduct No. 1 (Work No. 2);

Work No. 11 An intake (to be called intake No. 5) wholly situate in the borough of Heywood in the stream in the enclosure numbered 1281 on the 1/2500 ordnance map of Lancashire sheet LXXXVIII.2 (edition of 1939);

Work No. 14 A line of pipes wholly situate in the county borough commencing by a junction with the existing

PART II
—cont.

line of pipes from the Rainshore Bleach and Dye Works in the enclosure numbered 551 on the 1/2500 ordnance map of Lancashire sheet LXXX.15 (edition of 1929) and terminating in the said existing line of pipes in the enclosure numbered 567 on the same sheet;

Work No. 15 A new road wholly situate in the county borough commencing by a junction with the existing road known as Fordoe Lane near the building known as Fordoe and terminating by a junction with the existing road known as Over Town Lane.

Power to
stop up roads
and footpaths.

6.—(1) Subject to the provisions of this Act the Board may stop up the roads and footpaths in the county borough and the borough of Heywood referred to in the next following table so far as the same are shown on the deposited plans as intended to be stopped up and thereupon all rights of way over the said roads and footpaths or portions thereof shall be extinguished:—

Letters on plan denoting road or footpath to be stopped up	District	Number on plan of enclosure traversed by road or footpath
a — f	{ The county borough 3 The borough of Heywood 2	
c — d	The county borough 4 10 11 12 18	
p — q	The county borough 16 75	
k — n	The county borough 61	
f — x	The county borough 12 50 64	
w — x	The county borough 79	
y — z	The county borough 44	
aa — d	The county borough 17	

Provided that such roads and footpaths or portions thereof shall not be stopped up unless the Board are owners in possession of all lands on both sides thereof except so far as the owners lessees and occupiers of those lands may otherwise agree.

(2) Notwithstanding anything contained in subsection (1) of this section—

(a) none of the said roads and footpaths shall be stopped up until the new road (Work No. 15) authorised by this Act has been constructed in accordance with the provisions of this Act and properly completed;

(b) so much of the road in the county borough known as Greenbooth Road as lies between the points marked w and aa on the said plans and the accommodation road in the county borough providing access to Fordoe and Lower Knowl Farms shall not be stopped up until an alternative access to the said farms from Over Town Lane has been constructed in accordance with the provisions of this Act and properly completed;

(c) the said road in the county borough known as Greenbooth Road shall not be stopped up until temporary alternative access has been provided for use until the completion of the embankment or dam forming part of Work No. 1 authorised by this Act between the points marked aa and cc on the signed plan referred to in section 7 (Power to divert footpaths) of this Act and properly completed.

(3) In this section the expression “footpath” includes a bridle-path and the expression “properly completed” means completed to the reasonable satisfaction of the Rochdale Corporation and open for public use or in case of difference between the Board and the Rochdale Corporation completed to the satisfaction of the Minister of Transport and Civil Aviation and open for public use.

7.—(1) The Board may divert the public footpaths in the county borough referred to in the next following table in the manner shown upon the deposited plans and subject to the provisions of this Act may stop up and cause to be discontinued as a footpath so much of each of the said footpaths as will be rendered unnecessary by the new portion of footpath so shown on the signed plan and referred to in the second table set out in this section that is to say:—

Power to
divert
footpaths.

TABLE I

Letters on plan denoting footpath to be diverted	Number on plan of enclosure traversed by footpath
e — f	62
f — s	62
b — l	54 60 79 81 84
m — g	60 61
p — r	75
o — p	75 81

TABLE II

Letters on plan denoting new footpath or diversion	Number on plan of enclosure traversed by footpath or diversion
e — s	62
b — u	61 107
t — v	54 61 79 84 85 86 87 88
cc — g	105
l — bb	16 75 82

PART II
—cont.

(2) In this section the expression "the signed plan" means the plan signed in duplicate by William Ronald Parker on behalf of the Board and by William Harold Gordon Mercer on behalf of the Rochdale Corporation.

Stopping up
footpaths in
case of
diversion.

8.—(1) Where this Act authorises the diversion of a road or public footpath and the stopping up of an existing road or public footpath or any portion thereof such stopping up shall not take place until the new road or footpath has been completed to the reasonable satisfaction of the highway authority and is open for public use or in case of difference between the Board and the highway authority until the Minister of Transport and Civil Aviation shall have certified that the new road or footpath has been completed to his satisfaction and is open for public use.

(2) As from the date of completion to the satisfaction of the highway authority of any such diverted road or footpath or as from the date of the said certificate as the case may be all rights of way over or along the existing road or footpath or portion thereof shall be extinguished and the Board may appropriate and use for the purposes of the undertaking the site of the portion of the road or footpath stopped up so far as the same is bounded on both sides by lands of the Board.

Period for
completion
of works.

9. If the works authorised by this Act and shown upon the deposited plans and sections are not completed within a period of ten years from the passing of this Act then as from the expiration of that period the powers granted by this Act for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed:

Provided that the Board may extend enlarge alter reconstruct renew or remove any of the said works as and when occasion may require.

Works to form
part of
undertaking.

10. The works authorised by this Act shall for all purposes be deemed part of the undertaking.

Power to take
waters.

11. Subject to the provisions of this Act the Board may collect intercept abstract impound take use divert and appropriate for the purposes of the undertaking the waters of the Naden Brook the Royds Brook the Cheesden Brook the Fordoe Brook the Mill Croft Brook and the Old House Brook and such of the several feeders and tributaries thereof and other streams springs and waters as can be taken and intercepted by means of the Green Booth Reservoir (Work No. 1) authorised by this Act and by the other works authorised by this Act (other than the line of pipes and the new road).

12.—(1) Until the date of the completion and first filling of the Green Booth Reservoir (Work No. 1) authorised by this Act the Board shall at the existing Naden gauge discharge into the Naden Brook from or from streams feeding the Naden Reservoirs during every day in a uniform and continuous flow not less than three hundred thousand gallons of water and for the purpose of measuring such discharge the Board shall maintain in good order the existing Naden gauge. Provisions as to compensation water.

(2) As from the said date the Board shall at an approved point situate not more than one hundred yards below the foot of the embankment of the Green Booth Reservoir discharge into the Naden Brook from or from streams feeding the Green Booth Reservoir during every day (except Sundays) in a uniform and continuous flow not less than one million six hundred and forty-five thousand gallons of water and for the purpose of measuring such discharge the Board shall on an approved site construct and maintain in good order an approved self-recording gauge.

(3) Until the date of the completion and first filling of the Green Booth Reservoir (Work No. 1) authorised by this Act the Board shall at the existing Ashworth gauge discharge into the Cheesden Brook during every day in a uniform and continuous flow not less than two hundred and fifty thousand gallons of water and for the purpose of measuring such discharge the Board shall maintain in good order the existing Ashworth gauge.

(4) As from the said date the Board shall discharge into the Cheesden Brook such quantity of water as will ensure that there is flowing over an approved self-recording gauge constructed at an approved point situate on the Cheesden Brook not more than three hundred yards above its confluence with the Naden Brook in Simpson Clough in every day in a uniform and continuous flow a quantity of one million gallons of water and for the purpose of measuring such flow the Board shall maintain in good order the said gauge. So much of the said quantity of water flowing over the said gauge as is not unpounded surface water shall be discharged by the Board from a reservoir of the Board.

(5) If the Board—

- (a) fail to comply with the requirements of subsections (1) (2) (3) and (4) of this section with respect to the construction or maintenance in good order of any such gauge or refuse to allow any person interested to inspect and examine any such gauge or any records made thereby or kept by them in connection therewith or to take copies of any such records ; or

PART II
—cont.

- (b) fail to comply with the requirements of subsections (1) (2) (3) and (4) of this section with respect to the discharge of water into the Naden Brook or the Cheesden Brook (as the case may be);

they shall without prejudice to their civil liability (if any) to a person affected by such non-compliance be liable in the case of an offence under paragraph (a) of this subsection to a penalty not exceeding fifty pounds in respect of each day on which the offence has been committed or has continued and in the case of an offence under paragraph (b) of this subsection—

- (i) on summary conviction to a penalty not exceeding fifty pounds in respect of each such day; and
- (ii) on conviction on indictment to a penalty not exceeding five hundred pounds in respect of each such day.

(6) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water which the Board can collect intercept abstract impound take use divert or appropriate by means of the Naden Reservoirs and by means of the Green Booth Reservoir and the other works authorised by this Act or by means of the works authorised by the Act of 1901 or otherwise except in respect of any lands situate between the foot of the embankment of the Green Booth Reservoir and the point of discharge approved for the purposes of subsection (2) of this section or situate between the points of the intakes Works Nos. 5 7 and 9 authorised by this Act and the points of confluence of the Mill Croft Brook and the Old House Brook respectively with the Naden Brook.

(7) (a) After the expiration of fifteen years from the completion and first filling of the Green Booth Reservoir (Work No. 1) authorised by this Act the Minister may on the application of the Board by order alter amend or vary the provisions of this section in such manner as he shall think fit having regard to the circumstances prevailing at the date of such application.

(b) The provisions of Part I of the First Schedule to the Water Act 1945 shall apply to the making of applications and orders under the foregoing paragraph (a) of this subsection and all orders made under the said paragraph shall in the circumstances specified in paragraph 8 of the said schedule be subject to special parliamentary procedure.

(8) In this section the following expressions have the meanings hereby respectively assigned to them:—

“day” means a day of twenty-four hours reckoned from midnight;

“the existing Naden gauge” means the gauge maintained by the Board in accordance with section xlix (Company to maintain a constant supply of water to mill owners) of the Act of 1855 ;

“the existing Ashworth gauge” means the gauge maintained by the Board in accordance with section 18 (Compensation water) of the Act of 1901 ;

“the Naden Reservoirs” means the existing reservoirs of the Board known as the Higher Naden Reservoir the Middle Naden Reservoir and the Lower Naden Reservoir respectively ;

“gauge” includes a gauge weir or other apparatus for measuring the flow of water ;

“approved” means approved by the Minister.

13.—(1) It shall be lawful for the Board to divert and alter the course of any stream watercourse or ditch on any lands acquired or appropriated by them for the purposes of the works authorised by this Act and the existing bed banks and channel of the diverted portion of any such stream watercourse and ditch shall by virtue of this Act vest in the Board and may be appropriated and used by the Board for the purposes of or in connection with those works. Power to divert streams etc.

(2) In the exercise of the powers conferred by this section the Board shall do as little damage as may be and shall pay compensation to all persons for damage sustained by them or any liability to which they may become subject by reason of the exercise of those powers and any difference as to the amount of the compensation to be paid shall be referred to and determined by an arbitrator.

(3) The provisions of this section shall be in addition to and not in substitution for or in derogation of any other provision of this Act relating to the diversion of streams watercourses or ditches.

14. The provisions of section 145 of the Act of 1933 shall apply with respect to the alteration of any watercourse under the powers of the last foregoing section as if the alteration was done in the exercise of powers conferred by the Land Drainage Act 1930. Application of section 145 of Act of 1933.

15.—(1) If in the opinion of the Board it shall be expedient in order to preserve the purity of the waters which they are authorised to take for the purpose of the undertaking to prohibit the dipping or washing of sheep (with or without the use of chemicals) in any such waters the Board shall have powers to prohibit such dipping or washing of sheep: Sheep dipping and washing.

Provided that before the Board carry this provision into effect in respect of any place where it has been the practice to dip or

PART II
—cont.

wash sheep they shall give to the owners of such dipping or washing place notice in writing of their intention so to do and shall also give notice of such intention by advertisement in a newspaper circulating in the district in which such dipping or washing place is situate and shall also provide and maintain in the nearest convenient and available situation another suitable dipping or washing place and also a suitable folding place in the vicinity thereof.

(2) Any person aggrieved by any prohibition issued by the Board under this section may within three months after the issue thereof appeal to a magistrates' court held for the petty sessional division in which the prohibition is to take effect provided that he gives not less than fourteen days' notice of the appeal and the grounds thereof to the Board.

(3) On any such appeal the court shall have power to cancel the prohibition or to allow the prohibition unconditionally or subject to such conditions as to the area within which it shall take effect or as to the provision and maintenance of another suitable dipping or washing place or otherwise as they may think fit and to award costs which shall be recoverable summarily as a civil debt.

(4) A notice given under this section shall state the right of appeal to a magistrates' court and the time within which such an appeal may be brought.

(5) For the purposes of subsection (2) of this section the Rochdale Corporation shall be deemed to be a person aggrieved by any prohibition issued by the Board under this section relating to any place within the county borough.

PART III

LANDS

Power to
acquire lands.

16.—(1) Subject to the provisions of this Act the Board may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purpose of the works authorised by this Act.

(2) The powers of the Board for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of October nineteen hundred and fifty-six.

(3) The Board shall not under the powers of this Act serve notice to treat for the acquisition of any lands required for the purposes of Works Nos. 2 4 6 8 10 and 14 so far as such works are constructed underground unless it is agreed between the

Board and the owner or failing agreement determined by arbitration that the said works cannot reasonably be provided and maintained under an easement or right acquired under section 23 (Power to acquire easements only) of this Act.

PART III
—cont.

(4) The Board shall not under the powers of this section enter upon take or use the lands in the county borough delineated on the deposited plans and described in the deposited book of reference and therein numbered 70 to 73 111 and 112 or any part of those lands.

17.—(1) If any omission misstatement or wrong description of any land or of the owner lessee or occupier of any land is found to have been made on the deposited plans or in the deposited book of reference the Board after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

Correction of
errors in
deposited plans
and book of
reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

(3) If the land is situated in a county borough such certificate or a copy thereof shall be deposited with the town clerk and if the land is situated in an administrative county such certificate or a copy thereof shall be deposited with the clerk of the county council and a copy thereof shall be deposited with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plans (or of so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the Standing Orders of the Houses of Parliament or who has the custody of any such copy so deposited and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Board to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

18.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act 1845.

Acquisition of
part only of
certain
properties.

(2) No person shall be required to sell a part only of any house building or factory or of a park or garden belonging to a

PART III
—cont.

house if he is willing and able to sell the whole of the house building factory park or garden unless the tribunal determines—

- (a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory; or
- (b) in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Board that part of the house building factory park or garden.

Power to expedite entry.

19. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this section the Board may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

Provided that the Board shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

Power to enter for survey or valuation.

20. Any person acting on behalf of the Board and duly authorised by the clerk of the Board may at all reasonable times enter on any land that may be acquired compulsorily under this Act for the purpose of surveying or valuing the land:

Provided that no land shall be entered under this section unless the Board not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice to the owner and occupier of the land.

Disregard of recent improvements and interests.

21. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account—

- (a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-five; or
- (b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

22.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished.

PART III
—cont.

Extinction of
private rights
of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Board compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

23.—(1) In lieu of acquiring any land that may be acquired under this Act the Board may for the purposes of constructing using and maintaining so much of the works authorised by this Act as will be constructed underground and doing anything necessary in connection therewith acquire such easements and rights in that land as they may require for those purposes.

Power to
acquire
easements only.

(2) Accordingly the Board may give notice to treat in respect of any such easement or right describing the nature thereof and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(3) Where the Board have acquired an easement or right only in any land under this section—

(a) they shall not be required or (except by agreement or during the execution of the said works) entitled to fence off or sever that land from the adjoining land ;

(b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use the land as if this Act had not been passed.

(4) If in his particulars of claim the owner of any land in respect to which notice to treat for an easement or right is given under this section requires the Board to acquire the land the Board shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house :

Provided that nothing in this subsection shall apply to land forming part of a street.

PART III
—cont.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

Agreements
with adjoining
owners.

24.—(1) The Board may enter into and carry into effect agreements with any person being the owner of or interested in any land abutting on any portion either of the works authorised by this Act or of land that may be acquired under this Act with respect to the sale by the Board to him of any land.

(2) The Board may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Board for the purposes of this Act or any easement or right so required.

PART IV

SUPPLY OF WATER

As to supplies
from trunk
mains.

25. Notwithstanding anything in any enactment relating to the Board no person shall be entitled to demand a supply of water from a trunk main belonging to the Board:

Provided that nothing in this section shall prevent the Board from agreeing to provide a supply of water from a trunk main or affect their liability in respect of any such agreement whether made before or after the passing of this Act.

Power to
recover charge
for turning off
and turning on
in certain cases.

26. Where the occupier of any house having a separate supply of water gives notice to the Board for the discontinuance of the supply to such house without giving up possession and within a period of nine months thereafter requires the supply to be reconnected the Board may make a reasonable charge for turning off and turning on the supply of water to such house and such charge may be recovered summarily as a civil debt.

Cutting off
communication
pipes to prevent
waste of water.

27. Where any dwelling-house building or other premises are demolished or appear to the Board to be uninhabitable or in the case of premises other than a dwelling-house remain unoccupied for a period of not less than one month and the Board have reason to think that waste of water is occurring or is likely to occur they may cut off the communication pipe by which water was supplied to such dwelling-house building or other premises:

Provided that in any case where the Board think that waste is likely to occur and for that reason propose to cut off a communication pipe by which water was supplied to any dwelling-house

building or other premises which appear to them to be uninhabitable or to premises which have remained unoccupied for the period aforesaid they shall give notice of their intention to do so to the owner of the dwelling-house building or premises and if within one week of the receipt of such notice the owner satisfies the Board that reasonable steps are being taken to render habitable the dwelling-house building or premises or that the premises will be occupied within a reasonable period as the case may be the Board shall not cut off the communication pipe but may take such other action as they may consider necessary to prevent waste of water.

PART IV
—cont.

28. The Board shall have power to reduce or remit the payment of any sum due to them in respect of the supply of water on account of the poverty of any person liable for the payment thereof.

Remission of water rates on grounds of poverty.

29.—(1) Where the owner (not being the occupier) of any premises is liable for the payment of the rates chargeable by the Board for a supply of water thereto for domestic purposes such owner shall from time to time within twenty-one days after demand in writing by the Board deliver to the Board a list of the occupiers of the premises in respect of which he is so liable and such particulars with respect to the periods for which any of those premises have been unoccupied as the Board may require for the purpose of enabling them to determine what amount is properly due from the owner in respect of such rates.

Information to be supplied by owners of premises in certain cases.

(2) If any such owner refuses or neglects to comply with the provisions of this section or knowingly delivers to the Board particulars which are untrue in any material respect he shall in respect of each offence be liable on summary conviction to a penalty not exceeding five pounds.

PART V

FINANCIAL PROVISIONS

30. The Board may from time to time independently of any other borrowing power borrow at interest without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column of the said table and they shall pay off all moneys so borrowed within such periods as they

Power to borrow.

PART V
—cont.

may determine not exceeding those respectively mentioned in the third column of the said table:—

(1) Purpose	(2) Amount	(3) Period for repayment
(a) The purchase of lands for the works authorised by this Act (hereafter in this Act referred to as "purpose No. 1").	£ 16,840	Sixty years from the date or dates of borrowing.
(b) The construction of the works authorised by this Act other than the works specified in paragraph (c) of this table (hereafter in this Act referred to as "purpose No. 2").	1,215,540	Sixty years from the date or dates of borrowing.
(c) The construction of spun iron pipes and other waterworks purposes (hereafter in this Act referred to as "purpose No. 3").	32,620	Thirty years from the date or dates of borrowing.
(d) The payment out of capital of interest on moneys borrowed for and in connection with the purchase of lands for and the construction of the works authorised by this Act until the completion and first filling of the Green Booth Reservoir (Work No. 1) authorised by this Act or until the expiration of five years from the date or dates of borrowing whichever shall first happen (hereafter in this Act referred to as "purpose No. 4").	The sum required	Sixty years from the date or dates of borrowing.
(e) The payment of the costs charges and expenses preliminary to and of and incidental to the promotion and obtaining of this Act.	The sum required	Five years from the passing of this Act.

**Application of
Part IX of Act
of 1933.**

31.—(1) The provisions of Part IX of the Act of 1933 and of the regulations made thereunder so far as they are not inconsistent with the provisions of this Act shall extend and apply to the Board and to money borrowed by the Board as if—

- (a) the Board were a local authority within the meaning of the Act of 1933;
- (b) the money so borrowed were borrowed under the said Part IX; and
- (c) the revenues of the Board were the general rate fund or the revenues of the local authority;

and subject to any other modifications which may be necessary to adapt the said Part IX and regulations for the purpose of this section:

Provided that it shall not be obligatory on the Board to commence the repayment by sinking fund or otherwise of any moneys borrowed for purpose No. 1 purpose No. 2 and purpose No. 3 until the thirty-first day of March next after the completion of

the last of the works in respect of which the moneys are borrowed or until the expiration of five years from the date or dates of borrowing whichever shall first happen.

PART V
—cont.

(2) The periods mentioned in the third column of the table contained in section 30 (Power to borrow) of this Act shall as respects any money borrowed under that section respectively be the fixed period for the purposes of the said Part IX.

32. For the purposes of the definition of “statutory securities” in section 218 of the Act of 1933 any securities created by the Board shall be deemed to be securities created by a local authority. As to securities of Board.

33.—(1) In the event of a deficiency arising in the net revenue of the Board in any financial year the Board are hereby authorised in every case forthwith to apportion the sum required to meet such deficiency (whether for satisfying past or future liabilities) between the Heywood Corporation the Middleton Corporation and consumers outside the boroughs. Apportionment of deficiency in revenue of Board.

(2) The apportionment shall be in proportion to the total rateable value of the hereditaments in each of the boroughs respectively and the aggregate rateable value of the premises outside the boroughs which are supplied with water by the Board as shown in the valuation lists in force on the thirty-first day of March of the financial year in which the deficiency arose.

(3) The Board shall not later than the thirty-first day of March in the financial year next following that in which the deficiency arose issue to each of the corporations a precept for a sum equal to the amount apportioned to that corporation in pursuance of this section and each of the corporations shall within two months after the receipt by them of such precept (or by instalments of such amounts and payable within such times as may be specified in the precept issued to them) pay to the Board the sum stated in the precept.

(4) The amount apportioned to consumers outside the boroughs in pursuance of this section shall be charged by the Board by means of an additional water rate or charge over and above the maximum rates for water supplied outside the boroughs. The total amount payable by means of such additional water rate or charge to be charged to consumers outside the boroughs shall be apportioned amongst the said consumers regard being had to the rates and charges payable by such consumers respectively and shall be paid by them and may be recovered in the same manner and by means of the same remedies as though the same were part of such rates and charges.

(5) Such sums to be paid by the corporations shall be paid by them out of the general rate fund and general rate of their respective boroughs.

PART V
—cont.

(6) The words from “And in the event” to “such maximum rents” in section 18 (Rates for supply of water) of the Act of 1883 are hereby repealed and that section shall have effect as if for the words “hereinbefore contained in relation to the additional rent chargeable for water supplied for domestic purposes outside the borough in the event of a deficiency in the water revenue as aforesaid” there were substituted the words “of section 33 (Apportionment of deficiency in revenue of Board) of the Heywood and Middleton Water Act 1956”.

(7) The provisions of this section shall come into operation on the first day of April nineteen hundred and fifty-seven.

Application of
moneys
received by
Board.

34.—(1) All moneys received by the Board in respect of the undertaking including amounts brought forward from any previous year except—

- (a) borrowed money;
- (b) money arising from the disposal of lands acquired for the purposes of the undertaking;
- (c) other capital money received by them in respect of the undertaking; and
- (d) any contribution or contributions made to the Board by the Minister in pursuance of the Rural Water Supplies and Sewerage Act 1944 towards the expenses incurred or to be incurred by the Board on capital account;

shall be applied by them—

first in payment of the working and establishment expenses and cost of maintenance of the undertaking including all costs expenses penalties and damages incurred and payable by the Board consequent upon any proceedings by or against them or their officers clerks or servants in relation to the undertaking;

secondly in payment of the interest on the Heywood and Middleton Water Board Stock transferred to the Board by section 13 (As to charges on water undertaking) of the Act of 1907 and on moneys borrowed by the Board under any statutory borrowing powers;

thirdly in providing the requisite appropriations or sinking fund payments or instalments in respect of the repayment of the said Heywood and Middleton Water Board Stock and moneys borrowed by the Board under any statutory borrowing powers;

fourthly in payment of all other expenses of executing this Act not being expenses properly chargeable to capital;

fifthly in extending improving and constructing (if the Board think fit) any works for the purpose of the undertaking;

sixthly in providing working capital (if the Board think fit) ;
and

seventhly in providing a reserve fund (if the Board think fit) by setting aside such money as they think reasonable and (unless the same be used in pursuance of section 38 (Use of moneys forming part of sinking and other funds) of the Order of 1939 or section 8 of the Local Authorities Loans Act 1945) investing in statutory securities the sums so set aside and the sums which pursuant to section 35 (Interest on reserve funds) of this Act are to form part of that fund until the fund so formed amounts to a sum (in this Act referred to as "the prescribed maximum") equal to one-tenth of the aggregate capital expended for the time being by the Board upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Board from the undertaking or to meet any extraordinary claim or demand at any time arising against the Board in respect of the undertaking or for the payment of the costs of renewing improving or extending any part of the works forming part thereof and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time so often as such reduction happens :

Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at any time have reached or may have been reduced below the prescribed maximum :

Provided also that no sum shall be so set aside in or in respect of any financial year during which any sum has been apportioned to and become payable by the corporations to the Board to meet a deficiency in the net revenue of the Board.

(2) Any credit or debit balance remaining over in any year including any balance brought forward shall be carried forward to the following year.

(3) All capital moneys received by the Board in respect of the undertaking except money arising from the disposal of lands acquired for the purposes of this Act shall be applied by them in the reduction of the capital moneys borrowed by them and such application shall be in addition to and not in substitution for any other mode of extinguishment except to such extent and upon such terms as may be approved by the Minister :

Provided that if and so long as there shall be no sum outstanding in respect of capital moneys borrowed by the Board as aforesaid capital moneys received by the Board in respect

PART V
—cont.

of the undertaking shall be paid to a capital reserve fund provided by the Board until that fund amounts to the sum of fifty thousand pounds and thereafter shall be applied in such manner as may be approved by the Minister.

Interest on
reserve funds.

35. When sums are appropriated to a reserve fund the interest received in any year from the investment of the sums so appropriated shall form part of the revenue out of which the sums were appropriated:

Provided that a sum equivalent to the amount so carried to the revenue as aforesaid shall be added to such reserve fund unless and until the reserve fund has reached the prescribed maximum.

Saving for
powers of
Treasury.

36. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the powers of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Payment of
interest on
moneys
borrowed until
completion
of works.

37. Notwithstanding anything in this Act or in any Act wholly or partially incorporated therewith the Board may pay interest on any moneys borrowed under this Act for purpose No. 1 purpose No. 2 and purpose No. 3 out of moneys borrowed under this Act for purpose No. 4 but only until the completion and first filling of the Green Booth Reservoir (Work No. 1) authorised by this Act or until the expiration of five years from the date or dates of borrowing whichever shall first happen.

Expenses in
connection
with
ceremonies etc.

38. The Board may make payments for or in connection with—

- (a) the reception and entertainment by way of official courtesy of distinguished persons residing in or visiting the limits of supply or any work of the Board and persons representative of or connected with the public supply of water and the supply of information to any such persons;
- (b) visits by way of official courtesy by or on behalf of the Board;
- (c) the arrangement and conduct of ceremonies relating to or arising out of the statutory functions of the Board; and
- (d) visits to any works of the Board by way of instruction for employees of the Board;

including payments for travelling expenses and for expenses reasonably incurred by or on behalf of any member or officer of the Board in connection with any of the matters aforesaid:

Provided that the Board shall not in respect of any period of twelve months ending on the thirty-first day of March expend under the powers of this section any greater sum in the whole than two hundred pounds.

PART V
—cont.

PART VI

MISCELLANEOUS

39. Notwithstanding anything contained in subsection (1) of section 8 (Term of office and rotation of members) of the Act of 1898 a member of the Board who ceases to be a member of the council of the borough by whom he was elected shall thereupon cease to be a member of the Board:

Members of Board to cease to hold office in certain events.

Provided that for the purposes of this section a member of the Board shall not be deemed to have ceased to be a member of the council of the borough by whom he was elected if on or before the day on which he goes out of office he has been re-elected a member of that council.

40. If the Board commence proceedings for the summary recovery of a sum due for the supply of water any other sum due or payable to the Board in respect of the sale or hire of any apparatus or fittings supplied by them for or in connection with the consumption or use of water or the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same complaint summons or warrant or any schedule attached thereto and may be recovered summarily provided the amount due or payable in respect thereof does not in the aggregate exceed twenty pounds.

As to recovery summarily of sums due for fittings etc.

41. Section 265 of the Public Health Act 1875 and sections 276 277 and 278 of the Act of 1933 shall extend and apply to the Board and the members officers and clerks of the Board as if the Board were a local authority within the meaning of such sections respectively and as if the Heywood and Middleton Water Acts and Orders 1898 to 1956 were referred to in the said section 265 instead of the Public Health Act 1875.

Application of certain sections of Public Health Act 1875 and Act of 1933 to Board.

42.—(1) The following enactments are hereby repealed:— Repeal.

The Act of 1855—

- | | |
|--------------|---|
| Section XLIX | (Company to maintain a constant supply of water to mill owners); |
| Section L | (Present superintendent of gauge continued in office and providing for future appointment of superintendent); |
| Section LI | (Compensation for deficient supply); |
| Section LVI | (Company to employ a proper person for regulating the supply of water); |
| Section LVII | (The owners to have access to works); |

PART VI
—cont.

The Act of 1877—

- Section 7 (Compensation in water provided);
- Section 8 (Provision as to gauges);
- Section 10 (Penalty for failure to supply compensation water);
- Section 14 (Provisions as to permanent reduction of compensation);

The Heywood Corporation Act 1883—

- Section 22 (Application of water revenue);
- Section 23 (Deficiency of gas or water funds);

The Act of 1898—

- So much of section 19 (Application of provisions of scheduled Acts) as applies any enactment which is repealed by this Act;
- Section 23 (As to charges on water undertaking);

The Act of 1901—

- Section 18 (Compensation water);
- Section 33 (For the protection of Norden Urban District Council);
- So much of section 39 (Repeal of Acts with certain savings) and the schedule as relates to any provision of the Act of 1855 or the Act of 1877 which is repealed by this Act;

The Act of 1907—

- Section 18 (Members of the Board to cease to hold office in certain events).

(2) The sections of the Waterworks Clauses Act 1847 which relate to waste or misuse of the water supplied by the undertakers and sections 18 to 20 of the Waterworks Clauses Act 1863 shall cease to apply to the undertaking.

Application of
Arbitration
Act.

43. Where under this Act any question or dispute is to be referred to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) then unless otherwise provided the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed by the President of the Institution of Civil Engineers on the application of either party (after notice in writing to the other) and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to any such arbitration.

44. The following provisions for the protection of the Rochdale Corporation (hereinafter in this section referred to as "the corporation") shall except as otherwise agreed in writing between the Board and the corporation have effect:—

PART VI
—cont.

For protection
of Rochdale
Corporation.

(1) In this section—

“the new road” means the new road (Work No. 15) by this Act authorised;

"footpath" includes bridle-path;

“ the reservoir ” means the Green Booth Reservoir (Work No. 1) authorised by this Act:

(2) (a) Before commencing to construct or execute any works under the provisions of this Act or the enactments incorporated therewith affecting any highway public road or footpath in the county borough the Board shall submit to the corporation for their reasonable approval in respect of any matters with which the corporation are properly concerned as highway authority plans sections and particulars (including details of construction) of the proposed works ;

(b) The Board shall give reasonable notice to the corporation of the time at which such works are intended to be constructed or executed and shall comply with such reasonable conditions as the corporation may require for obviating or reducing interference with the traffic using the highway road or footpath:

(3) Before commencing to construct or execute any works under the provisions of this Act or the enactments incorporated therewith affecting any drains sewers or pipes of the corporation the Board shall give notice in writing of their proposals to the corporation:

(4) If the corporation shall in consequence of the construction maintenance or renewal or the failure of Works Nos. 2 4 5 6 7 8 and 9 authorised by this Act or any portion thereof in any highway in the county borough reasonably incur in connection with the maintenance inspection or renewal of any sewer drain water main pipe cable or other apparatus of the corporation situate in such highway at the date of the execution by the Board of the said works or such portion thereof any expense beyond the expense which the corporation would have had to incur if the said works had not been constructed the Board shall reimburse to the corporation the additional expense so incurred by them :

(5) The Board shall construct the new road on embankment or in cutting and on a bridge for crossing Royds Brook:

PART VI
—cont.

- (6) Before commencing the construction of the new road the Board shall submit to the corporation for their approval detailed plans sections and specifications thereof and of the embankments cuttings and bridge:
- (7) Before commencing the construction of the new road the Board shall give to the corporation not less than seven days' notice of their intention so to do:
- (8) (a) The Board shall at their own expense—
- (i) erect fences or walls of such type and in such position as the corporation may reasonably require along each side of the new road and along each side of the embankments cuttings and bridge;
 - (ii) maintain such fences or walls to the reasonable satisfaction of the corporation and of the owners of land adjoining the new road;
 - (iii) provide such access to such adjoining land from the new road as the said owners may reasonably require;
 - (iv) where necessary strengthen and widen to the reasonable satisfaction of the corporation so much of Over Town Lane as lies between its junction with the new road and its junction with the private road to Rainshore Mill at a point four hundred and eighty feet or thereabouts south south-east of the building marked on the deposited plans as Over Town;
 - (v) obtain or use their best endeavours to obtain wayleaves and such rights of way over Over Town Lane as may be necessary for the occupiers of premises affected by the stopping up of any part of Greenbooth Road;
- (b) The works referred to in this paragraph shall be completed and brought into use before the Board stop up any part of Greenbooth Road or of the access road therefrom:
- (9) Notwithstanding anything contained in the Public Utilities Street Works Act 1950 the Board shall bear the cost of executing any work or taking any measures necessary to protect any aqueduct pipe line or intake authorised by this Act due to the execution by the corporation of any reconstruction widening alteration or improvement of Wolstenholme Coalpit Lane Edenfield Road Over Town Lane or Woodhouse Lane:
- (10) The Board shall indemnify the corporation from and against all claims in respect of any pollution which may be caused by surface water drainage from Wolstenholme Coalpit Lane Edenfield Road Over Town Lane

and Woodhouse Lane and shall bear the cost of any necessary alteration or diversion of any sewer of the corporation:

- (11) Within two years after the completion of the reservoir the Board shall remove or to the reasonable satisfaction of the corporation demolish or otherwise dispose of all temporary buildings and structures erected for the purposes of or in connection with the construction of the reservoir and shall remove all surplus materials plant machinery and appliances provided or erected in connection therewith and shall so far as is reasonably practicable to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and structures or any surplus materials plant machinery and appliances as aforesaid have been placed and shall comply with such reasonable requirements with regard thereto as the corporation shall make including requirements as to the sowing of grass seed and the planting of trees:
- (12) The Board shall not construct or execute any works in respect of which they are required by this section to submit plans sections specifications or particulars to the corporation for approval otherwise than in accordance with such plans sections specifications or particulars as may be approved by the corporation or if such approval be refused as may be settled by arbitration:
- (13) Nothing in paragraph (6) or paragraph (8) of this section shall in relation to the new road require the Board to construct the new road or any embankment cutting or bridge or to erect any fence or wall of a better standard respectively than the standard of roads embankments cuttings bridges fences or walls (as the case may be) generally in the vicinity of the works authorised by this Act:
- (14) Any difference arising between the Board and the corporation under this section shall be settled by arbitration.

45. The following provisions for the protection of the Mersey River Board (in this section referred to as "the river board") shall except so far as may be agreed in writing between the river board and the Board apply and have effect (that is to say):—

For protection
of Mersey
River Board.

- (1) For the purposes of subsection (5) of section 12 (Provisions as to compensation water) of this Act the river board shall be deemed to be a person affected by a non-compliance with the requirements of subsections (1) (2) (3) and (4) of that section:

PART VI
—cont.For protection
of gas and
electricity
undertakers.

(2) The Board shall complete the construction of the Green Booth Reservoir (Work No. 1) authorised by this Act within a period of ten years from the passing of this Act.

46. For the protection of the undertakers referred to in this section the following provisions shall unless otherwise agreed in writing between the Board and the undertakers concerned apply and have effect:—

(1) In this section—

“the undertakers” means the North Western Electricity Board and the North Western Gas Board;

“apparatus” means—

(a) in the case of the North Western Electricity Board electric lines or works (as respectively defined in the Electricity Supply Acts 1882 to 1936) belonging to or lawfully laid or erected by the said board; or

(b) in the case of the North Western Gas Board any apparatus belonging to that board or for the maintenance of which they are responsible;

(not being in either case apparatus in respect of which the relations between the Board and the undertakers are regulated by the provisions of Part III of the Public Utilities Street Works Act 1950);

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“in” in a context referring to apparatus or alternative apparatus in land includes a reference to apparatus or alternative apparatus under over or upon land:

(2) Notwithstanding anything in this Act or shown on the deposited plans the Board shall not acquire any apparatus under the powers of this Act otherwise than by agreement:

(3) If the Board in the exercise of the powers of this Act acquire any interest in any lands in which any apparatus is placed that apparatus shall not be removed under this section and any right of the undertakers to maintain repair renew or inspect that apparatus in those lands shall not be extinguished until adequate alternative apparatus shall have been constructed and be in operation to the reasonable satisfaction of the undertakers:

- (4) If the Board for the purpose of executing any works in on or under any lands acquired held appropriated or used under this Act require the removal of any apparatus placed in those lands and shall give to the undertakers written notice of such requirement together with a plan and section of the work proposed and of the proposed position of the alternative apparatus to be provided or constructed so as to provide adequate alternative apparatus in lieu of the apparatus to be removed or if in consequence of the exercise of any of the powers of this Act the undertakers shall reasonably require to remove any apparatus the Board shall afford to the undertakers the necessary facilities and rights for the construction of such alternative apparatus in other lands of the Board and thereafter for the maintenance repair renewal and inspection of such apparatus:

Provided that if the alternative apparatus or any part thereof is to be constructed elsewhere than in other lands of the Board and the Board are unable to afford such facilities and rights as aforesaid in the lands in which the alternative apparatus or such part thereof is to be constructed the undertakers shall on receipt of a written notice to that effect from the Board forthwith use their best endeavours to obtain the necessary facilities and rights in such last-mentioned lands:

- (5) (a) Any alternative apparatus to be constructed in lands of the Board in pursuance of this section shall be constructed in such manner and in such line or situation as may be agreed between the undertakers and the Board or in default of agreement settled by arbitration;
- (b) The undertakers shall after the alternative apparatus to be provided or constructed shall have been agreed or settled by arbitration as aforesaid and after the grant to the undertakers of any such facilities and rights as are referred to in the immediately preceding paragraph proceed with all reasonable dispatch to construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required by the Board to be removed under the provisions of this section:
- (6) Notwithstanding anything in the immediately preceding paragraph if the Board give notice in writing to the undertakers that they desire themselves to execute any part of so much of the work necessary in connection with the construction of the alternative apparatus or the removal of the apparatus required to be removed as will be situate in any lands of the Board such work

PART VI
—cont.

in lieu of being executed by the undertakers shall be executed by the Board with all reasonable dispatch under the superintendence (if given) and to the reasonable satisfaction of the undertakers:

Provided that nothing in this paragraph shall authorise the Board to execute the actual placing installation bedding packing removal connection or disconnection of any apparatus or any filling around the apparatus extending (where the apparatus is laid in a trench) to not less than twelve inches above the apparatus:

- (7) Where in accordance with the provisions of this section the Board afford to the undertakers facilities and rights for the construction maintenance repair renewal and inspection in lands of the Board of alternative apparatus in substitution for apparatus to be removed as aforesaid those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Board and the undertakers or in default of agreement determined by arbitration:

Provided that in determining such terms and conditions as aforesaid in respect of alternative apparatus to be constructed across or through any of the works authorised by section 5 (Power to construct works) of this Act the arbitrator shall—

(a) give effect to all reasonable requirements of the Board for ensuring the safety and efficient operation of the said works and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such works; and

(b) so far as it may be reasonable and practicable to do so in the circumstances of the particular case give effect to the terms and conditions applicable to the apparatus (if any) constructed through the lands of the Board for which the alternative apparatus is to be substituted:

Provided also that if the facilities and rights to be afforded by the Board in respect of any alternative apparatus and the terms and conditions subject to which the same are to be granted are in the opinion of the arbitrator less favourable on the whole to the undertakers than the facilities and rights enjoyed by them in respect of the apparatus to be removed and the terms and conditions to which those facilities and rights are subject the arbitrator shall make such provision for the payment of compensation by the Board

to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (8) (a) Not less than twenty-eight days before commencing to execute any such works as are referred to in paragraph (4) of this section and are near to or will or may affect any apparatus the removal of which has not been required by the Board under the said paragraph (4) the Board shall submit to the undertakers a plan section and description of the works to be executed;
- (b) Such works shall be executed only in accordance with the plan section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus or for securing access thereto and the undertakers shall be entitled by their officer to watch and inspect the execution of such works:

Provided that if the undertakers within fourteen days after the submission to them of any such plan section and description shall in consequence of the works proposed by the Board reasonably require the removal of any apparatus and give written notice to the Board of such requirement the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the Board under paragraph (4) thereof:

Provided also that nothing in this sub-paragraph shall preclude the Board from submitting at any time or from time to time but in no case less than twenty-eight days before commencing the execution of any such works a new plan section and description thereof in lieu of the plan section and description previously submitted and thereupon the provisions of this paragraph shall apply to and in respect of such new plan section and description;

- (c) The Board shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but in such a case they shall give to the undertakers notice as soon as reasonably practicable and a plan section and description of the works as soon as reasonably practicable thereafter and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:
- (9) Where in consequence of this Act any part of any street road or footpath in which any apparatus is situate ceases to be part of a street road or footpath the undertakers may exercise the same rights of access

PART VI
—cont.

to such apparatus as they enjoyed immediately before the passing of this Act but nothing in this paragraph shall prejudice or affect any right of the Board or of the undertakers to require removal of such apparatus under this section or the power of the Board to execute works in accordance with paragraph (8) of this section:

- (10) The Board shall pay to the undertakers the costs charges and expenses reasonably incurred by the undertakers in or in connection with the inspection removal alteration or protection of any apparatus or the construction of any new apparatus which may be required in consequence of the execution of any such works as are referred to in paragraph (4) of this section less the value of any apparatus removed in pursuance of the provisions of this section (such value being calculated after removal) and shall also make compensation to the undertakers—

(a) for any damage caused to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal in accordance with the provisions of this section); and

(b) for any other expenses loss damages penalty or costs incurred by the undertakers;

by reason or in consequence of the execution maintenance user or failure of any such works or otherwise by reason or in consequence of the exercise by the Board of the powers of this Act:

- (11) Where by reason or in consequence of the stopping up of any street road or footpath under the powers of this Act any apparatus belonging to the undertakers and laid or placed in such street road or footpath or elsewhere is rendered derelict or unnecessary the Board shall pay to the undertakers the then value of such apparatus (which shall thereupon become the property of the Board) and the reasonable cost of and incidental to the cutting off of such apparatus from any other apparatus and of and incidental to the execution or doing of any works or things rendered necessary or expedient by reason or in consequence of such apparatus being so rendered derelict or unnecessary:

Provided that the Board shall not under the provisions of this paragraph be required to pay to the undertakers the value of any apparatus rendered derelict or unnecessary if to the reasonable satisfaction of the undertakers other apparatus shall at the expense of the Board have been provided and laid and made ready for use in substitution for the apparatus so rendered derelict or unnecessary:

- (12) Any difference arising between the Board and the undertakers under this section shall be settled by arbitration.

PART VI
—cont.

47. The following provisions for the protection of the Midland Leather Company Limited and Kelsall and Kemp Limited (each of whom is in this section referred to as “the company”) shall except so far as may be agreed in writing between the company and the Board and the Mersey River Board apply and have effect (that is to say):—

For protection of Midland Leather Company Limited and Kelsall and Kemp Limited.

- (1) Until the date of the completion and first filling of the Green Booth Reservoir (Work No. 1) authorised by this Act the Board shall from time to time discharge into the reservoir known as Doctor Dam such quantities of water as shall be necessary to keep such reservoir full:
- (2) The water to be discharged in accordance with paragraph (1) of this section shall be conveyed by a pipe the inlet of which shall be sited above the site of the said Green Booth Reservoir and the outlet of which shall be automatically controlled by a suitable ballcock:
- (3) The Board shall complete the construction of the said Green Booth Reservoir within a period of ten years from the passing of this Act.

48. The following provisions for the protection of James R. Crompton and Brothers Limited (in this section referred to as “the company”) shall except so far as may be agreed in writing between the company and the Board and the Mersey River Board apply and have effect (that is to say):—

For protection of James R. Crompton and Brothers Limited.

- (1) Until the date of the completion and first filling of the Green Booth Reservoir (Work No. 1) authorised by this Act the Board shall from time to time discharge from a reservoir of the Board into the Cheesden Brook such quantities of water as shall be necessary to keep the lodges at the Simpson Clough Paper Mill of the company full:

Provided that nothing in this paragraph shall require the Board to discharge into the Cheesden Brook a greater quantity of water than shall be necessary to ensure that there is flowing over a gauge to be constructed by the Board in the Cheesden Brook at the intake No. 1 (Work No. 3) authorised by this Act in a uniform and continuous flow a quantity of five hundred and fifty thousand gallons a day of twenty-four hours reckoned from midnight:

- (2) The Board shall complete the construction of the said Green Booth Reservoir within a period of ten years from the passing of this Act:

PART VI
—cont.

- (3) Notwithstanding the acquisition by the Board of the land designated on the deposited plans for the site of the gauge referred to in subsection (4) of section 12 (Provisions as to compensation water) of this Act the Board shall not acquire the weir and sluice and other works of the company thereon and there shall be reserved to the company full right and liberty at all times with workmen materials and equipment to enter upon the said land for the purpose of operating and using and inspecting maintaining repairing and renewing the said weir sluice or works of the company.

For protection
of R.
Cudworth
(Norden)
Limited.

49. For the protection of R. Cudworth (Norden) Limited or other the owner or owners for the time being of the premises known as Baitings Mill Norden in the county borough of Rochdale (in this section referred to as "the owner") the following provisions shall unless otherwise agreed in writing between the Board and the owner apply and have effect (that is to say):—

- (1) The Board shall not under the powers of this Act acquire compulsorily any lands of the owner or any right to take water therefrom but the Board may acquire and the owner shall grant such easements and rights in the lands of the owner shown within the limits of deviation on the deposited plans as they may reasonably require for the purposes of Work No. 2 authorised by section 5 of this Act:
- (2) The consideration to be paid for the easements and rights to be acquired by the Board and granted by the owner under the last foregoing subsection shall in case of dispute be settled in manner provided by the Lands Clauses Acts with respect to the purchase of lands otherwise than by agreement:
- (3) The Board shall before commencing the construction of the said Work No. 2 so far as it is to be constructed on the lands of the owner give to the owner twenty-eight days' notice of their intention to commence such construction and the Board shall when that part of the said Work No. 2 is completed restore the surface of the ground as far as possible to the condition in which it was before the commencement of the construction of that part of that work.

Saving for town
and country
planning.

50. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

51. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and

passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board and may be paid out of the revenue of the undertaking or out of moneys borrowed under the powers of this Act.

PART VI
—cont.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 20.
Waterworks Clauses Act 1847 ...	10 & 11 Vict. c. 17.
Heywood Waterworks Amendment Act 1855 ...	18 & 19 Vict. c. xx.
Lands Clauses Consolidation Acts Amendment Act 1860 ...	23 & 24 Vict. c. 106.
Waterworks Clauses Act 1863 ...	26 & 27 Vict. c. 93.
Public Health Act 1875 ...	38 & 39 Vict. c. 55.
Heywood Waterworks Act 1877 ...	40 & 41 Vict. c. clii.
Telegraph Act 1878 ...	41 & 42 Vict. c. 76.
Heywood Corporation Act 1883 ...	46 & 47 Vict. c. lxxi.
Heywood Waterworks (Transfer) Act 1898 ...	61 & 62 Vict. c. ccxi.
Heywood and Middleton Water Board Act 1901	1 Edw. 7 c. ccxxxvi.
Heywood and Middleton Water Board Act 1907	7 Edw. 7 c. lxxi.
Acquisition of Land (Assessment of Compensation) Act 1919 ...	9 & 10 Geo. 5 c. 57.
Land Drainage Act 1930 ...	20 & 21 Geo. 5 c. 44.
Local Government Act 1933 ...	23 & 24 Geo. 5 c. 51.
Ministry of Health Provisional Order Confirmation (Heywood and Middleton Water Board) Act 1939 ...	2 & 3 Geo. 6 c. xlv.
Rural Water Supplies and Sewerage Act 1944 ...	7 & 8 Geo. 6 c. 26.
Local Authorities Loans Act 1945 ...	8 & 9 Geo. 6 c. 18.
Water Act 1945 ...	8 & 9 Geo. 6 c. 42.
Borrowing (Control and Guarantees) Act 1946 ...	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Lands Tribunal Act 1949 ...	12 13 & 14 Geo. 6 c. 42.
Arbitration Act 1950 ...	14 Geo. 6 c. 27.
Public Utilities Street Works Act 1950 ...	14 Geo. 6 c. 39.
Local Government (Miscellaneous Provisions) Act 1953 ...	1 & 2 Eliz. 2 c. 26.
Town and Country Planning Act 1954 ...	2 & 3 Eliz. 2 c. 72.

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